

Notice of Referral — Misconduct in Public Office

Filed with MPS Serious and Organised Crime Command, CPS Special Crime Division, and NCA Economic Crime Command

Case references

BV20D01752 | BL-2024-001217 | CA-2024-001342 | AC-2025-LON-004293

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command

Nadia Zahmoul

Litigant in Person

16 March 2026

Veritas Numquam Perit

Field	Detail
Referral filed	16 March 2026
Referred by	Nadia Zahmoul
Date of birth	27 April 1969
Email	nadia@rosekross.com
Telephone	+44 (0)7913 328 615
Address	35 Queens Gate Gardens, Flat 7, London SW7 5RR
Diagnoses	Autism Spectrum Condition (DSM-5: 299.00 / ICD-10: F84.0) — CLAAS, NHS, June 2025; PTSD (DSM-IV: 309.81) — treating since 2011 (Professor Gerald Libby FRCP FRCPsych)
Clinical warning	<i>"Nadia can communicate using sophisticated vocabulary which can generate the false impression that she is managing better than she is."</i> — CLAAS, NHS, July 2025
Proceedings	BV20D01752 (Family Division); BL-2024-001217 (Chancery); CA-2024-001342 (Court of Appeal); AC-2025-LON-004293 (Administrative Court — JR)
Evidence archive	379 indexed contemporaneous records. Master Index v7. GitHub: github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive
JR status	Permission refused by Collins Rice J, 11 March 2026 (TWM). CPR 3.1(7) revocation application filed 12 March 2026. This referral is not conditional on any JR outcome.

1. NATURE OF THIS REFERRAL

This is a formal criminal referral. It is filed with the Metropolitan Police Service Serious and Organised Crime Command, the CPS Special Crime Division, and the NCA Economic Crime Command on 16 March 2026.

This referral concerns misconduct in public office, a common law offence under English law. It does not concern the merits of any judicial decision. It concerns the administrative conduct of public officers — court clerks, HMCTS administrators, and a Family Division judge acting in an administrative capacity — over a period of more than two years.

A pre-filing notice was prepared on 10 March 2026. It is not served. This Notice of Referral replaces it. The referral is filed without prior notice to any subject of the referral, and without condition.

This referral is made independently of the Judicial Review proceedings in AC-2025-LON-004293. The permission refusal of 11 March 2026 does not affect it. The criminal conduct documented here is not a matter for administrative or judicial review — it is a matter for police investigation.

2. LEGAL FRAMEWORK

The offence of misconduct in public office is a common law offence. The elements, as confirmed in *Attorney General's Reference (No 3 of 2003)* [2004] EWCA Crim 868, are:

- 1. A public officer acting as such;
- 2. Who wilfully neglects to perform their duty and/or wilfully misconducts themselves;
- 3. To such a degree as to amount to an abuse of the public's trust in the office holder;
- 4. Without reasonable excuse or justification.

All four elements are satisfied on the facts of this referral.

Public officers. The subjects of this referral are: MacDonald J (Family Division, High Court); Karen Selby-King (Judicial Associate / Clerk, Family Division); Kelly Foxwell (Clerk, Family Division); Clive Higgleton (Clerk, Family Division); and officers of HMCTS's User Investigation Team (Customer Excellence Division). All are public officers. All were acting as such.

Wilful neglect. Each failure was preceded by written, timestamped, documented requests. In each case the duty was known, the request was received, and no action was taken. The Referral Package sets out 379 indexed records establishing this pattern over 26 months (February 2024 – March 2026).

Degree sufficient to amount to abuse of public trust. The conduct spans two years and includes: starvation of a disabled litigant during live proceedings; non-enforcement of a court order producing 71 documented unanswered requests; structural exclusion of a disabled woman from the final order process; failure to log, safeguard, or transmit criminal evidence submitted on multiple occasions; and formal misclassification of statutory equality duties as judicial discretion.

No reasonable excuse. The Complainant's incapacity was documented in real time at every stage. NHS clinical records, a consultant psychiatrist's letter to the court, a CLAAS autism diagnostic assessment, and contemporaneous court correspondence all establish that the subjects of this referral knew of the Complainant's disability and its operational consequences. None acted.

3. SUBJECTS OF THE REFERRAL

Subject	Role	Principal Acts / Omissions
MacDonald J	Family Division Judge — High	Failure to enforce MPS order (71

	Court	documented requests); refusal to give reasons for non-enforcement; mischaracterisation of Part 3A argument as request for legal representation; acceptance of unilateral draft order while Complainant was excluded; safety disclosures received and not acted upon; judgment of 18 April 2024 contains zero disability references across 111 paragraphs.
Karen Selby-King	Judicial Associate / Clerk, Family Division	Transmitted judicial responses mischaracterising Complainant's submissions; forwarded unilateral draft orders to judge without notifying Complainant of equal footing request; served final order and costs judgment simultaneously on Friday before Bank Holiday with no participation support.
Kelly Foxwell	Clerk, Family Division	Transmitted hearing on 24 May 2024 (NMO hearing) where Complainant joined video link and found no one present. Served sealed order without participation accommodation.
Clive Higgleton	Cover Clerk, Family Division	Refused MPS enforcement on procedural grounds despite fee paid; simultaneously imposed 14 May 4pm deadline while Complainant disclosed starvation, anaemia, and heart problems at 4:24am.
HMCTS User Investigation Team	Customer Excellence Division, HMCTS	Formal misclassification of Part 3A participation measures withdrawal as " <i>judicial decision</i> " on 14 November 2025 — closing every administrative complaint channel for a disabled user. This misclassification is factually wrong: no judicial act exists. It engaged HMCTS's s.149 Equality Act 2010 duty.

4. PRINCIPAL HEADS OF MISCONDUCT

4.1 Non-Enforcement of Maintenance Pending Suit — 71 Documented Requests

A Maintenance Pending Suit order was in force. Payments ceased in February 2024. Between 6 March and 24 May 2024, the Complainant made 71 documented written requests for enforcement. This figure is drawn from her own formal filing of 28 May 2024 (appeal application BV20D08761). Zero enforcement actions were taken.

On 7 May 2024, MacDonald J refused enforcement despite the D50K application fee having been paid, while simultaneously imposing a 14 May 4pm deadline. The Complainant had no food, no money, and disclosed heart problems in writing to the court at 4:24am on 8 May 2024.

On 3 May 2024 at 15:55 — one minute after the Complainant emailed the Lord Chancellor — opposing counsel unilaterally inserted paragraph 34 into the draft final order, extinguishing approximately £50,000 of MPS arrears. No notice. No application. No hearing. The court accepted and sealed it.

4.2 Structural Exclusion from Draft Order Process

Between 3 May and 24 May 2024, opposing counsel filed six versions of the draft final order unilaterally. The Complainant had no legal representation, no MPS income, no food, and no accommodation. She was in hospital with £120 on 14 May 2024 when five material amendments were filed without her input. The court accepted all of them. Opposing counsel confirmed in writing the following day that her participation in the draft order process was "*minimal*" and that it was "*the judge's decision*."

4.3 Failure to Implement Part 3A Participation Measures Post-Trial

Participation measures were ordered under FPR Part 3A and PD3AA during the trial (19–28 February 2024). Those measures ceased in practice on 28 February 2024. There is no identifiable judicial act, no order, no hearing, and no reasons for their cessation. No public officer has ever identified the judicial act authorising their withdrawal — because none exists.

59 records in the post-trial dataset (March–June 2024) are tagged PART3A. 172 records across all proceedings are tagged PARTICIPATION-DENIED. HMCTS formally classified the cessation as a "*judicial decision*" on 14 November 2025. That classification is factually wrong and constitutes a further administrative failure engaging the wilful neglect threshold.

4.4 Safety Disclosures Ignored

Three physical safety incidents — two in 2023 (police-reported) and one on 24 March 2024 involving the Complainant's 16-year-old daughter in Kensington — were reported directly to MacDonald J on 9 April 2024 while judgment was reserved. Judgment was delivered on

18 April 2024 with no reference to any safety disclosure. The judge's documented response to the 9 April email was: "*hard to follow*." No safeguarding referral was made.

4.5 Failure to Safeguard and Transmit Criminal Evidence — Imerman Devices

Two devices (MacBook Pro and Ubuntu laptop) were placed under court custody pursuant to HHJ Cope's Imerman directions of 7 April 2021. No chain of custody record was created. No forensic review was conducted. No administrative decision on handling was made. The devices have been held for four years without any order for their examination or return. They contain evidence of the criminal matters set out in Section 5 below.

Criminal evidence referrals were submitted on 8 February 2024, 11 April 2024, and 12 May 2025. None were logged. None were transmitted. None were acknowledged by any court official or HMCTS administrator.

4.6 Timing of Final Order — Bank Holiday Friday

The final order and costs judgment were transmitted simultaneously at 11:28 on Friday 24 May 2024 — the Friday before the three-day Bank Holiday weekend. The Complainant had no legal representation, no food, and no accommodation. Any urgent response was structurally impossible for four days. The NMO hearing listed for the same afternoon resulted in the Complainant joining a video link and finding no one present.

5. UNDETERMINED CRIMINAL MATTERS

The following matters are not administrative complaints. They are allegations of criminal conduct — some by the opposing party, some arising from the failure of the public officers in Section 3 to act on the evidence submitted to them. None has been determined by any court, tribunal, or regulatory body.

Matter	Status	Why Not Determined
Perjury — Oxus Acquisition Corp. Karim Zahmoul stated under oath at the final hearing (19 February 2024) that Oxus Acquisition Corp. had no value at the time of the SPAC merger. The merger completed 8 February 2024 — 11 days earlier. The Complainant submitted a D11 application (7 March 2024). It was not sealed, not listed, and not addressed in the judgment.	UNDETERMINED — no judicial finding made	Campbell KC wrote to the judge at 08:15 on 6 March 2024 asking him not to read the Complainant's submission. The D11 was not sealed. The judgment contains no reference to Oxus.
Money Laundering — Prostitution Proceeds.	UNDETERMINED — devices	Submitted 8 February 2024, 11 April 2024, 12 May 2025. Not

Evidence on the Imerman devices and in the Pinocchio documents (transmitted by H via Signal, 6 May 2021 — confidentiality lost) indicates laundering of prostitution proceeds through UK and offshore accounts.	unexamined for 4+ years	logged. Not transmitted. Not acknowledged.
Money Laundering — Kleptocracy / Sanctions Evasion. Kenes Rakishev, Kazakh oligarch. Documented connection to H and to assets in the proceedings. Subject of SEC investigation and IRS Criminal Investigation (Special Agent Robert McGarry). Molina BTC cluster: 1AWKgMEwDjHxL3WcaoijvmnH5LXkTA3zw	UNDETERMINED — not referred despite submissions	Raised with MacDonald J, Lord Chancellor, Secretary of State for Justice, and NCA. Not logged by any court official.
Tax Fraud — False Statements (US nexus). Expert report by Tim Townsend (forensic accountant) placed before the court. Portuguese tax return re-filed post-trial by H's accountant — admitting overseas accounts omitted. SEC whistleblower submission TCR 17284-760-060-567 (9 October 2024).	UNDETERMINED — expert report not acted upon	Expert report before court before hearing. Portuguese re-filing disclosed by AFP Bloom 5 March 2024. No court referral made.
Safety Threats — Rakishev Associates. Three physical safety incidents reported to MacDonald J on 9 April 2024. Surveillance of 16-year-old daughter on 24 March 2024 confirmed. Response: "<i>hard to follow</i>."	UNDETERMINED — reported to judge, no action	Safety report received; judgment silent. No safeguarding referral. No police referral by court.

6. EVIDENTIAL FOUNDATION

Component	Description
Master Index v7	379 indexed contemporaneous records. February 2024 – March 2026. Named actors, timestamps, misconduct tags across six categories. GitHub: github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive

20 Most Compelling Records	Set out in the companion document (Zahmoul_CompellingMisconduct_Top20). Records 1–15 are the core set; Records 16–20 add the LIP transition, PTSD disclosure, binary question refusal, and pre-deadline escalation day.
Full Participation Annex	379-entry chronological record of every document February–June 2024. Three unilateral order dates flagged (3 May, 14 May, 24 May 2024). Landscape format.
Post-Trial Participation Failures	Narrative document with corrected metrics: 71 MPS enforcement requests; 59 Part 3A-tagged records post-trial; 172 PARTICIPATION-DENIED records across all proceedings.
Imerman Annex	Finalised. Updated 11 March 2026 to reflect JR refusal (Parts 2.8 and 6.3). 392 paragraphs across nine parts.
Oxus / Perjury Annex	Completed. JR reference updates deferred pending Chancery relisting outcome.
Medical Evidence — 13 records	NHS records, treating clinician records, US emergency records. Earliest: Cottonwood Tucson 2 April 2013. Most recent: St John's Medical Center, Jackson WY, 10 December 2025.
Legal Framework Compliance Schedule	Maps every applicable rule governing vulnerable parties against attendance notes, transcript, and compliance status. Judgment (111 paragraphs) contains zero disability references.
All Routes Exhausted Documentation	HMCTS complaints Stages 1–4 (final response 14 November 2025 — misclassification). PAP correspondence to MoJ (unanswered). Ministerial escalation. PHSO complaint November 2025 (pending). 40+ parliamentary notifications. JR AC-2025-LON-004293 (refused TWM 11 March 2026). CPR 3.1(7) revocation filed 12 March 2026.
Chancery Proceedings (BL-2024-001217)	Default judgment £1,008,848.42. Hearing vacated 12 March 2026 (costs reserved). Direct causal link to MPS non-enforcement and funding collapse. Detach litigation funder — loan obtained during Family proceedings in which participation was systematically denied.

7. MISCONDUCT TAGS — QUANTIFIED ACROSS 379 RECORDS

Tag	Legal Element (AG's Reference No 3 of 2003)	Count (379 records)
WILFUL-NEGLECT	Known duty; failure to perform;	133

	no explanation given	
RECKLESS-INDIFF	Incapacity evidence received; no accommodation taken	95
PARTICIPATION-DENIED	Knew Complainant could not participate; proceeded anyway	172
INSTITUTIONAL-DEFLECT	Formal matter raised; routed away without engagement	180
ABUSE-OF-PROCESS	Procedure used inconsistently with its purpose	58
REASONS-REFUSED	Decision made; reasons required by law; none given	15

8. ALL ROUTES EXHAUSTED — CHRONOLOGY

Date / Period	Route and Outcome
Feb-May 2024	71 documented MPS enforcement requests. Zero enforcement actions. 120 days without income.
Apr 2024	Three safety incidents reported to MacDonald J while judgment reserved. No action. Not referenced in judgment.
May-Jun 2024	Multiple stay applications. No mechanism provided. No form. Proceedings continued.
Oct-Nov 2025	Four-stage HMCTS formal complaint. Final response 14 November 2025: misclassification as " <i>judicial decision</i> ." All complaint channels closed.
Oct-Nov 2025	Pre-Action Protocol letters to Ministry of Justice. Unanswered.
Nov 2025	Ministerial escalation to Secretary of State for Justice and Health. No substantive response.
Nov 2025	Minister Stephen Kinnock MP: confirmed enforcement gap under Autism Act 2009. No remedy.
Nov 2025	PHSO complaint filed. No determination as of 15 March 2026.
Nov 2025	Letters to 40+ parliamentarians including House of Lords Autism Act 2009 Committee. No remedy.
Dec 2025	Judicial Review N461 filed — AC-2025-LON-004293. Permission stage.
4 Mar 2026	N463 urgent application filed. Sealed 6 March 2026.
11 Mar 2026	JR permission refused — TWM — Collins Rice J. Costs £3,125.50.

12 Mar 2026	CPR 3.1(7) revocation application filed. Ground: fundamental error in refusal order — addresses wrong claim.
12 Mar 2026	Chancery hearing BL-2024-001217 vacated. Costs reserved. Relist as in-person required.
13 Mar 2026	Parliamentary written evidence submitted — Justice Committee.
16 Mar 2026	THIS REFERRAL FILED.

9. CURRENT STATUS AND ACTIVE HARM

The Complainant is a single parent with two dependent children. She is autistic (NHS diagnosis June 2025) and has PTSD (treating since 2011). She has been hospitalised during these proceedings. US emergency departments attended November and December 2025. Currently under care of South Kensington and Chelsea Crisis and Home Treatment Team. Her 85-year-old father was her sole financial support throughout March–May 2024. The CLAAS clinical warning has been before every court and institution. It has not been acted upon.

The Chancery hearing before Master Pester (BL-2024-001217) was vacated on 12 March 2026 and must be relisted as an in-person hearing. Costs are reserved. The claim (£1,008,848.42 default judgment) arises directly from litigation funding obtained during the Family proceedings. It is a downstream consequence of the MPS non-enforcement and funding collapse documented in this referral.

The CPR 3.1(7) application to revoke the JR refusal order is before the Administrative Court. This referral is not conditional on any outcome of that application.

The Detach proceedings (BL-2024-001217) involve a running account agreement under which the lender has confirmed that interest continues to accrue and that no payment offer will freeze its accumulation. The financial harm is ongoing.

10. WHAT THIS REFERRAL ASKS OF LAW ENFORCEMENT

1. Open a criminal investigation into the conduct of the named public officers under the misconduct in public office threshold in *AG's Reference (No 3 of 2003)*.
2. Secure the Imerman devices (MacBook Pro and Ubuntu laptop) currently held in court custody before further deterioration, loss, or destruction. No chain of custody record exists. No court order governs their handling.
3. Consider the undetermined criminal matters in Section 5 — in particular the Oxus perjury allegation, the money laundering evidence, and the Rakishev network — in the context of this referral.

4. Liaise with the IRS Criminal Investigation (Special Agent Robert McGarry, robert.mcgarry@ci.irs.gov, 917-620-8587) and the SEC (TCR 17284-760-060-567) regarding the US-nexus matters.
5. Note that the Pinocchio documents were transmitted by Karim Zahmoul to the Complainant via Signal on 6 May 2021. Confidentiality was lost at the point of transmission. They are available to law enforcement without a court order.
6. Treat the Complainant's autism and PTSD as operational context. The CLAAS clinical warning applies to all contact: she may communicate clearly while in clinical crisis. Written communication is strongly preferred. Response by email to nadia@rosekross.com.

Signed:

Nadia Zahmoul

Complainant — Litigant in Person

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Dated: 16 March 2026

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